

BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

RE: Mental Health Counselor License of JANET RIECKHOFF-FARIS License No. 095439 Respondent	CASE NO. 21-0148 COMBINED STATEMENT OF CHARGES, SETTLEMENT AGREEMENT, AND FINAL ORDER
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COME NOW the Iowa Board of Behavioral Science (“Board”) and Janet Rieckhoff-Faris (“Respondent”), 4725 S Merle Hay Rd, Ste 205, Urbandale IA 50322, and enter into this Combined Statement of Charges, Settlement Agreement, and Final Order (“Order”) pursuant to Iowa Code sections 17A.10 and 272C.3(4), and 645 Iowa Administrative Code (IAC) 12.1. The Board has the authority to take disciplinary action pursuant to Iowa Code sections 147.55 and 272C.3, and 645 IAC chapter 33.

A. STATEMENT OF CHARGES

COUNT I

1. Respondent is charged under 645 IAC 33.2(3)“c” with a failure to exercise the degree of care which is ordinarily exercised by the average practitioner acting in the same or similar circumstances.

B. FACTUAL CIRCUMSTANCES

2. Respondent holds mental health counselor license number 095439, which is currently active through September 30, 2022.

3. At all relevant times, Respondent was practicing with a temporary mental health counselor license. As a temporary mental health counselor, Respondent was under the direct supervision of a qualified supervisor who reviewed and approved Respondent’s clinical records.

4. Respondent treated a minor client. Respondent did not obtain express written consent to treat from both parents of the minor client. Respondent’s actions demonstrated a bias towards one parent. Respondent sent an email with information about the client to an unintended recipient.

C. SETTLEMENT AGREEMENT AND FINAL ORDER

5. The Board has jurisdiction over Respondent and the subject matter of this proceeding.

6. Respondent acknowledges that the allegations in the Statement of Charges, if proven in a contested case hearing, would constitute grounds for the discipline agreed to in this Order.

7. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to a hearing before the Board on the charges, but Respondent waives the right to a hearing and all attendant rights, including the right to appeal or seek judicial review of the Board’s action,

by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.

8. Respondent acknowledges that they have the right to be represented by counsel on this matter.

9. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.

10. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.

11. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

12. This Order shall not be binding as to any new complaints received by the Board.

13. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

14. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.

15. The Board's approval of this Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

16. Respondent is **CITED** for failure to exercise the degree of care which is ordinarily exercised by the average practitioner acting in the same or similar circumstances and **WARNED** that future violations may result in further disciplinary action.

17. Respondent shall complete all of the following remediation:

- a. For a period of nine (9) months, Respondent shall only engage in the practice of mental health counseling as part of an agency or group practice with oversight over Respondent by at least one independently licensed mental health provider.
- b. For a period of nine (9) months, Respondent shall have an Iowa licensed mental health counselor or marital and family therapist who meets the Board's requirements to serve as a supervisor provide supervision to Respondent. Respondent shall meet with her supervisor at least once per week for nine (9) months to review Respondent's clinical practice and recordkeeping. Respondent shall notify the Board at the conclusion of nine

(9) months of supervision and receive confirmation from the Board that the supervision has been completed prior to ceasing supervision.

- c. Within ninety (90) days of this Order, Respondent shall complete six (6) hours of continuing education related to ethics, consent to treat, and/or confidentiality. These hours are in addition to the standard continuing education requirements for license renewal and cannot be used to satisfy the required hours for license renewal. Respondent shall submit certificates of completion for the courses taken to satisfy this requirement.
- d. Respondent and her supervisor shall appear before the Board upon request for the purpose of reviewing her performance under supervision. Respondent shall be given reasonable notice of the date, time, and place for such appearances.
- e. Respondent is responsible for all costs incurred to comply with these terms and conditions.
- f. Upon approval of this Order, Respondent shall provide the Board with information regarding her employment and supervision. While completing supervision, Respondent shall provide written notification to the Board of any change of employment or supervisor within ten (10) days of such a change.
- g. Respondent's supervisor shall submit monitoring reports to the Board on a bimonthly basis. The bimonthly reports are due by February 28, April 30, June 30, August 31, October 31, and December 31 while completing supervision. Respondent is responsible for ensuring the monitoring reports are timely submitted by her supervisor.
- h. The notifications and reports required to be submitted to the Board pursuant to this paragraph should be mailed to the Iowa Board of Behavioral Science, Attn: Tony Alden, Bureau of Professional Licensure, Iowa Department of Public Health, Lucas State Office Building—5th Floor, 321 East 12th St., Des Moines, IA 50319, or emailed to plpublic@idph.iowa.gov.

18. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154D, and 272C and 645 IAC 13 and 33.

3/8/2022
Date

Janet Rieckhoff
JANET RIECKHOFF-FARIS
Respondent

This Combined Statement of Charges, Settlement Agreement, and Final Order is approved by the Iowa Board of Behavioral Science on March 10, 2022.

/s/ Tony Alden

Tony Alden, Board Executive
Iowa Board of Behavioral Science